

HOUSE BILL 1373

By White

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to school performance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3701, is amended by deleting "Pilot".

SECTION 2. Tennessee Code Annotated, Section 49-6-3702, is amended by deleting "Non-pilot school" in subdivision (2) and substituting instead "Non-participating school" and by deleting "pilot" wherever it appears in the section.

SECTION 3. Tennessee Code Annotated, Section 49-6-3703, is amended by deleting the section and substituting instead the following:

(a) The department shall create and develop a school turnaround program for priority schools pursuant to § 49-6-3704.

(b) The department shall select up to five (5) priority schools each year that are diverse in grade levels to participate in the program; provided, that no more than fifteen (15) priority schools may participate in the program at any given time. The department shall select at least one (1) priority school each year from each grand division of this state to ensure that the priority schools selected to participate in the program are geographically diverse.

(c) The department shall operate and administer the program. Each school in need of intervention selected to participate in the program must develop a school turnaround plan in the first school year of its participation in the program.

(d)

(1) Each school in need of intervention shall implement its school turnaround plan in each of the three (3) school years immediately following the school year in which the school in need of intervention developed its school turnaround plan pursuant to subsection (c). The department shall not require a school in need of intervention that exits the program pursuant to § 49-6-3705(b)(2) to continue implementing its school turnaround plan.

(2) The department shall evaluate the progress of each school in need of intervention to determine whether the school meets the priority school exit criteria established by the state's federally approved Every Student Succeeds Act (ESSA) plan approved pursuant to the Every Student Succeeds Act (ESSA) (20 U.S.C. § 6301 et seq.) at the end of each school year for which the school in need of intervention is participating in the program.

(e) By October 1 each year, the department shall file with the education committee of the senate and committee of the house of representatives having jurisdiction over elementary and secondary education a report evaluating the effectiveness of the program for the immediately preceding school year. The report must address the implementation and effectiveness of comprehensive support and improvement plans implemented by non-participating schools and school turnaround plans implemented by schools in need of intervention in addressing the prioritized needs of the respective school that resulted in the school's designation as a priority school. The report filed by the department following the last school year of a four-school-year-cycle must:

(1) Compare the student performance outcomes for each school in need of intervention exiting the program after participating in the program for no more than four (4) consecutive school years with those of non-participating schools;

(2) Compare the outcomes for each school in need of intervention exiting the program after participating in the program for no more than four (4) consecutive school years, identifying:

(A) How the school turnaround plan developed by the school in need of intervention that met the priority school exit criteria during the program differs from a school in need of intervention that did not meet the priority school exit criteria during the program; and

(B) How a school in need of intervention that did not meet the priority school exit criteria during the school's participation in the program improved, if at all, during its participation in the program; and

(3) Recommend whether a school turnaround plan developed by one (1) or more schools in need of intervention that met the priority school exit criteria during its participation in the program should be replicated in non-participating schools to improve the performance of priority schools in this state.

SECTION 4. Tennessee Code Annotated, Section 49-6-3704(a), is amended by deleting the word "pilot".

SECTION 5. Tennessee Code Annotated, Section 49-6-3705, is amended by deleting the word "pilot" wherever it appears in the section and by deleting subdivision (b)(1) and substituting instead the following:

(1)

(A) A school in need of intervention that is required by the school's local board of education to participate in the program shall not participate in the program for more than four (4) consecutive school years, beginning with the school year in which the school in need of intervention develops its school turnaround plan pursuant to § 49-6-3703(c).

(B) The department may select additional schools in need of intervention to participate in the program if one (1) or more schools in need of intervention exits the program after participating in the program for four (4) consecutive school years or pursuant to subdivision (b)(2); provided, that no more than fifteen (15) schools may participate in the program at any given time.

SECTION 6. Tennessee Code Annotated, Section 49-6-3706, is amended by deleting the section and substituting instead the following:

(a) By September 30 of the first school year in which a school in need of intervention is participating in the program, the respective local board of education shall establish a school turnaround committee for each school in the LEA that is participating in the school turnaround program. The school turnaround committee shall make recommendations concerning the school turnaround plan to the local board of education. The school turnaround committee must be composed of the following members:

- (1) The local school board member who represents the voting district in which the school is located;
- (2) The principal of the school;
- (3) Three (3) parents of students enrolled in the school, to be appointed by the director of schools;
- (4) Two (2) teachers at the school, to be appointed by the local board of education;
- (5) Two (2) teachers at the school, to be appointed by the director of schools;
- (6) One (1) member of a local community group or organization; and
- (7) One (1) business leader.

(b)

(1) The members of the school turnaround committee must serve until the school in need of intervention exits the program, unless a member ceases to qualify for the position. The school turnaround committee for a school that exits the program pursuant to § 49-6-3705(b)(2) terminates on the date the local board of education notifies the commissioner of education and the independent school turnaround expert under contract with the board pursuant to § 49-6-3707(b), in writing, that the school is exiting the program.

(2) If, before the school in need of intervention exits the program, a person replaces the local board of education member serving on the school turnaround committee on the board, or, if the director of schools appoints a new principal of the school, then the new local board of education member or the new principal fills the position on the school turnaround committee held by the new local board of education member's or new school principal's predecessor.

(3) If, before the school in need of intervention exist the program, a parent member ceases to have a student enrolled at the school, a teacher member ceases to teach at the school, or a parent or teacher member resigns or otherwise cannot fulfill the member's duties, then the member's position on the school turnaround committee is vacated and the respective appointing authority shall appoint a new member to serve on the school turnaround committee.

(c) By November 30 of the first school year in which the school in need of intervention is participating in the program, the local board of education shall contract with an independent school turnaround expert from a list of qualified experts provided by the department pursuant to § 49-6-3707, who shall develop a school turnaround plan in collaboration with the school turnaround committee that includes:

(1) The findings of the analysis conducted by the independent school turnaround expert described in § 49-6-3707;

(2) Recommendations compliant with state and federal law regarding changes to the school's personnel, culture, curriculum, assessments, instructional practices, governance, leadership, finances, policies, or other areas that may be necessary to implement the school turnaround plan;

(3) Measurable student achievement goals and objectives;

(4) A professional development plan that identifies strategies to address problems of instructional practice;

(5) A leadership development plan focused on strategies to turn around the school;

(6) How progress will be monitored and assessed;

(7) How data on progress will be communicated and reported to stakeholders; and

(8) A timeline for implementation that aligns with the timelines established for the program in this part.

(d)

(1) By March 1 of the first school year in which the school in need of intervention is participating in the program, the school turnaround committee shall submit the recommended school turnaround plan to the local board of education. The local board of education may recommend changes to the school turnaround committee for the school turnaround plan, but the school turnaround committee and the local board of education must agree on a final school turnaround plan. The local board of education shall submit the final school turnaround plan to the department for approval by April 1.

(2) If the local board of education and the school turnaround committee do not agree on the final school turnaround plan before April 1, then the local board of education and the school turnaround committee may independently submit a proposed school turnaround plan to the department for approval. The department may make any necessary changes to a proposed school turnaround plan submitted to the department, but shall approve one (1) of the proposed school turnaround plans for the school in need of intervention.

(3) Upon the department's receipt of a school turnaround plan submitted for approval pursuant to subdivision (d)(1), the department shall:

(A) Review the school turnaround plan within thirty (30) days of the plan's submission to the department; and

(B) Approve a school turnaround plan submitted in accordance with subdivision (d)(1) that is timely, well-developed, and aligned with the rubric developed by the department. The department may recommend additional changes to the school turnaround plan submitted to the department before the department approves the school turnaround plan.

SECTION 7. Tennessee Code Annotated, Section 49-6-3707, is amended by deleting subsections (c)-(e) and substituting instead the following:

(c) The contract payments to the independent school turnaround expert required in § 49-6-3706(c) must be structured as follows:

(1) An independent school turnaround expert receives the initial fifty percent (50%) of the payment due for all services provided under the contract on a prorated basis over the term of the contract; and

(2) The local board of education shall not render the remaining fifty percent (50%) of the payment due to the independent school turnaround expert

for all services provided under the contract until the school in need of intervention served by the independent school turnaround expert exits the program, but such payment is only rendered if the school in need of intervention served by the independent school turnaround expert meets the priority school exit criteria by the end of the school in need of intervention's final school year in the program.

(d) Subject to available funds, the department may develop a program to incentivize independent school turnaround experts, and the schools in need of intervention to which they are providing services, to meet the priority school exit criteria before the schools in need of intervention exit the program.

(e) Notwithstanding subsection (c), the independent school turnaround expert under contract with a school in need of intervention that exits the program pursuant to § 49-6-3705(b)(2) must be compensated for all services provided to the LEA under the contract through the date on which the local board of education notifies the commissioner of education and the independent school turnaround expert under contract with the board pursuant to subsection (b), in writing, that the school is exiting the program. The independent school turnaround expert shall not demand payment for any services provided to the exiting school in need of intervention after such date.

SECTION 8. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.